PROFIT SHARING & BUSINESS DEVELOPMENT AGREEMENT

AMENDED AND RESTATED

HealthPlus International — Westminster Green Solutions Pty Ltd

A binding agreement governing profit sharing, roles, retirement, succession and dissolution

DOCUMENT REF	HPI-PSA-2026-001 v2.0
ORIGINAL DATE	6 May 2026 (Version 1.0)
AMENDMENT DATE	28 May 2026
EFFECTIVE DATE	Date of full execution by both parties
GOVERNING LAW	Laws of New South Wales, Australia
JURISDICTION	Courts of New South Wales
VERSION	Version 2.0 — Amended and Restated (supersedes Version 1.0 in full)
BASIS OF AMENDMENT	Company Letter dated 11 May 2026 (HPI-PSA-2026-001 — Final Position) accepted by the Consultant

LEGAL NOTICE	*This agreement is legally binding. Both parties should obtain independent legal advice before signing. This document does not constitute legal advice and should be reviewed by a qualified Australian solicitor before execution.*

AMENDMENT SUMMARY	*This Amended and Restated Agreement supersedes HPI-PSA-2026-001 v1.0 (6 May 2026) in full. Key amendments incorporated: (1) Consultant title amended to **Strategic Business Development Advisor**; (2) Passive Royalty Term defined as **fifteen (15) years** from the Retirement Notice (replacing perpetual royalty); (3) Reserved Matters reduced from nine to three categories; (4) new **Anti-Migration** clause (5I) and **WGS Pre-Existing Interests Carve-Out** (5J); (5) Sale Event successor binding during Royalty Term; (6) Monthly reporting obligations extended through Royalty Term; (7) Heir entitlement capped at total fifteen (15) years from Retirement Notice; (8) Minimum Guaranteed Draw removed; (9) Director Salary Cap set at nil until amount agreed in writing.*

THE PARTIES

PARTY A — COMPANY	PARTY B — CONSULTANT
Westminster Green Solutions Pty Ltd ABN 13 155 901 723 Trading as: Health Plus International Unit 4, 44-46 Keeler Street Carlingford NSW 2118 **Represented by:** Abhay J Kumar Sole Director & Sole Shareholder wgs.aus@gmail.com | +61 411 459 755	**Reji Varghese** Business Development Consultant **Strategic Business Development Advisor** — International Operations 26 Mubo Crescent Holsworthy NSW 2173 ABN / TFN: [Insert Reji ABN/TFN] [Reji Email] | [Reji Phone]

Background: Westminster Green Solutions Pty Ltd (the **Company**) operates HealthPlus International as a registered business trading name, providing healthcare workforce placement services to regional and remote communities in NSW under an employer-of-record model. Reji Varghese (the **Consultant**) has contributed materially to the development and growth of the HealthPlus International business. The parties first executed a Profit Sharing and Business Development Agreement dated 6 May 2026 (the **Original Agreement**). Following negotiation, the parties have agreed amendments documented in the Company Letter dated 11 May 2026, which are incorporated in this Amended and Restated Agreement. This Agreement supersedes the Original Agreement in full and governs the parties' relationship from the Effective Date onwards.

THE PARTIES AGREE AS FOLLOWS:

PART 1 — DEFINITIONS AND INTERPRETATION

1. Definitions

In this Agreement, the following definitions apply unless the context requires otherwise:

"Agreement"	This Amended and Restated Profit Sharing and Business Development Agreement and all schedules attached hereto, as amended from time to time by written consent of both parties.
"Original Agreement"	The Profit Sharing and Business Development Agreement HPI-PSA-2026-001 v1.0 dated 6 May 2026, which is superseded in full by this Agreement.
"Commencement Date"	The date this Agreement is fully executed by both parties.
"Company"	Westminster Green Solutions Pty Ltd ABN 13 155 901 723 trading as Health Plus International.
"Consultant"	Reji Varghese, acting in the capacity of Business Development Consultant and **Strategic Business Development Advisor — International Operations**.
"Gross Revenue"	All revenue received by the Company from the HealthPlus International trading business, including placement fees, management fees, on-hire margins and any other income directly attributable to the HealthPlus International business.
"Gross Expenses"	All direct costs and overhead expenses incurred in operating the HealthPlus International business in accordance with clause 5B (Definition of Reasonable Expenses), including but not limited to: worker wages and on-costs, superannuation, workers compensation insurance, payroll tax, recruitment costs, accommodation costs, visa and vetting costs, marketing, technology, professional services, and any other expense directly attributable to the business. The Director Salary of Abhay J Kumar (if any, as declared to the ATO, and subject to the Salary Cap in clause 5A) is included as a Gross Expense.
"Net Profit"	Gross Revenue minus Gross Expenses (as defined and limited in clause 5B) minus Income Tax payable by the Company on HealthPlus International profits, calculated on an annual basis for each Financial Year. For the avoidance of doubt and as expressly restated, the following are excluded from Gross Expenses and shall not reduce Net Profit: (a) expenses unrelated to HealthPlus International activities; (b) above-market related-party payments; (c) personal expenses of the Director; and (d) expenses attributable to other Westminster Green Solutions Pty Ltd business activities.
"Financial Year"	The period from 1 July to 30 June each year.
"Profit Share"	50% (fifty percent) of Net Profit payable to the Consultant in accordance with this Agreement.

"Retirement"	The voluntary cessation by the Consultant of active business development and operational duties under this Agreement, evidenced by written notice to the Company in accordance with clause 7.1, without the Consultant surrendering entitlement to Passive Royalties under clause 7.
"Retirement Notice"	A written notice given by the Consultant to the Company under clause 7.1 of this Agreement electing to retire from active duties.
"Royalty Term"	The period of **fifteen (15) years** commencing on the date of the Retirement Notice, during which the Passive Royalty is payable in accordance with clause 7. Upon expiry of the Royalty Term, the Passive Royalty automatically ceases and all entitlements under clause 7 are extinguished.
"Passive Royalty"	The payment to the Consultant (or their estate) following Retirement, calculated as 50% of Net Profit of the HealthPlus International business, payable during the Royalty Term in accordance with clause 7.
"Restraint Period"	A period of three (3) years commencing on the date of full exit or termination of this Agreement under clauses 6 or 8.
"Restraint Territory"	The State of New South Wales, Australia.
"Competing Business"	Any business that provides healthcare workforce placement, labour hire or employer-of-record services to healthcare facilities, aged care services or community care services in regional or remote areas of Australia.
"Dissolution Event"	The event described in clause 13, being the full and final termination of the HealthPlus International trading business.
"Next of Kin"	The spouse, de facto partner, or adult children of a deceased party, as nominated in writing by that party. If no nomination is made, Next of Kin is determined by the intestacy laws of NSW.
"Pre-Existing WGS Interests"	Any commercial activity, business, contract, trading name, intellectual property or asset of Westminster Green Solutions Pty Ltd that is not conducted under the HealthPlus International trading name, including but not limited to NDIS-related labour hire, waste and recycling operations, and any other activity in sectors other than healthcare workforce placement.
"Sale Event"	Any sale, transfer, assignment, or disposal (in whole or substantially in whole) of the HealthPlus International business, its goodwill, client base, worker database, brand, or assets to a third party.
"Business Day"	A day that is not a Saturday, Sunday, or public holiday in New South Wales.

2. Interpretation

2.1 Headings are for convenience only and do not affect interpretation. References to clauses, parts and schedules are references to clauses, parts and schedules of this Agreement. The singular includes the plural and vice versa. References to a party include that party's successors and permitted assigns.

2.2 If there is any inconsistency between the body of this Agreement and the Company Letter dated 11 May 2026, the body of this Agreement prevails. The Company Letter dated 11 May 2026 forms part of the negotiation history and is admissible solely for the purpose of construing the parties' commercial intent under clause 2.3.

2.3 This Agreement supersedes the Original Agreement in full from the Commencement Date.

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PART 2 — ROLES AND RELATIONSHIP

3. Nature of Relationship

3.1 The Consultant is engaged by the Company as an independent contractor. Nothing in this Agreement creates a relationship of employment, partnership, joint venture, or agency between the parties.

3.2 The Consultant is solely responsible for their own tax obligations, including income tax and GST (if registered), arising from payments received under this Agreement.

3.3 The Company shall not withhold PAYG tax from payments to the Consultant. The Consultant is responsible for declaring all income received under this Agreement to the Australian Taxation Office.

4. Roles and Responsibilities

4.1 The Consultant shall perform the following roles in connection with the HealthPlus International business:

(a) Business Development Consultant — sourcing new client facilities, healthcare workers, and international recruitment pipelines; building and maintaining business relationships; and developing new revenue streams for the business;

(b) Strategic Business Development Advisor — International Operations — providing strategic advice on international worker sourcing, particularly from the Philippines, India and Eastern Europe; advising on international compliance, credentialling and placement processes.

4.2 **No Directorial Authority — De Facto Director Exclusion.** Abhay J Kumar, as Sole Director of the Company, retains full legal, financial, and operational control of Westminster Green Solutions Pty Ltd and the HealthPlus International business at all times. The Consultant:

(a) is not, and shall not be deemed to be, a director, shadow director, or de facto director of the Company within the meaning of section 9 of the *Corporations Act 2001 (Cth)*;

(b) does not hold any directorial powers, voting rights, or fiduciary duties under the *Corporations Act 2001 (Cth)*;

(c) does not have authority to give instructions or wishes in accordance with which the Director is accustomed to act;

(d) acts solely as an independent contractor providing advisory and business development services on a contractual basis; and

(e) shall not represent themselves to any third party as a director, board member, officer, or controller of the Company.

The title "Strategic Business Development Advisor" is descriptive of the Consultant's advisory function only and confers no statutory office, fiduciary duty, or corporate authority.

4.3 The Consultant shall not incur any financial liability or obligation on behalf of the Company without the prior written approval of the Director.

4.4 The parties shall cooperate in good faith and communicate regularly to ensure the growth and integrity of the HealthPlus International business.

PART 3 — PROFIT SHARING

5. Profit Sharing Arrangement

5.1 In consideration of the Consultant performing the roles and services described in clause 4, the Company shall pay the Consultant a Profit Share equal to 50% of Net Profit of the HealthPlus International business in each Financial Year.

5.2 Net Profit shall be calculated as set out in the definition of Net Profit in clause 1, on an annual basis for each Financial Year ending 30 June.

Net Profit = Gross Revenue – Gross Expenses – Income Tax
Calculated annually for each Financial Year ending 30 June

5.3 The Profit Share shall be calculated and paid within 60 days of the end of each Financial Year, following preparation of the annual accounts.

5.4 The Company shall provide the Consultant with a written Profit Share Statement for each Financial Year, detailing Gross Revenue, Gross Expenses, Income Tax, Net Profit, and the Profit Share amount payable.

5.5 The Consultant has the right, at their own cost, to request an independent review of the Profit Share Statement by a registered accountant once per Financial Year. The Company must provide all reasonable access to financial records for the purpose of such a review.

5.6 If in any Financial Year the HealthPlus International business records a Net Loss (i.e. Gross Expenses and Tax exceed Gross Revenue), no Profit Share is payable for that year. Losses are not carried forward to offset future Profit Share.

5.7 The Consultant may, by written agreement with the Director, elect to take interim Profit Share drawings during the Financial Year, subject to adjustment at year end. Any overpayment of interim drawings is recoverable by the Company from the Consultant within 30 days of the Profit Share Statement.

DRAFTING NOTE: *Clause 5D of the Original Agreement (Minimum Guaranteed Draw) has been removed. The Consultant is paid pure Profit Share under this Part 3. Interim drawings under clause 5.7 are available by mutual written agreement but are not guaranteed.*

PART 4 — SALE OR ACQUISITION OF THE BUSINESS

6. Rights on Sale or Acquisition

6.1 If the Company sells, transfers, or otherwise disposes of the HealthPlus International business or its goodwill, assets or client base (in whole or substantially in whole) to a third party (a **"Sale Event"**), the Consultant is entitled to receive 50% of the Net Sale Proceeds.

6.2 **Net Sale Proceeds** means the total consideration received by the Company in connection with the Sale Event (whether in cash, shares, deferred payments or other form), minus:

(a) all reasonable transaction costs, including legal fees, accounting fees, and broker commissions; and

(b) any outstanding liabilities of the HealthPlus International business at the date of sale that are assumed or discharged from sale proceeds.

6.3 The Director shall not enter into a Sale Event without:

(a) giving the Consultant at least 60 days written notice of the proposed sale; and

(b) providing the Consultant with full details of the proposed terms, including the proposed purchase price and any deferred or contingent components.

6.4 The Consultant does not have a right of veto over a Sale Event. However, the Director must ensure the sale agreement contains provisions protecting the Consultant's entitlement to 50% of Net Sale Proceeds under this clause.

6.5 Payment of the Consultant's 50% share of Net Sale Proceeds shall be made within 14 days of the Company receiving each tranche of sale consideration (including any deferred payments).

6.6 **Successor Binding During Royalty Term.** Where, at the date of a Sale Event, the Consultant has issued a Retirement Notice and the Royalty Term has not expired, the Passive Royalty entitlement under clause 8.3 shall survive the Sale Event and bind any arm's-length successor entity or purchaser of the HealthPlus International business as a going concern for the unexpired portion of the Royalty Term. The Company must procure a written deed of assumption from the purchaser confirming this obligation prior to completion.

6.7 A Sale Event does not terminate this Agreement unless the parties agree otherwise in writing. If the HealthPlus International business continues under a new owner, the parties shall negotiate in good faith regarding the continuation of the profit sharing arrangement with the acquirer for any period in which the Consultant has not retired.

PART 5 — TERMINATION BY THE COMPANY

7. Termination by the Company

7.1 The Company (acting through its Director) may terminate this Agreement in the following circumstances:

(a) Termination for Cause — immediately upon written notice to the Consultant if the Consultant:

(i) commits an act of fraud, dishonesty or serious misconduct in connection with the business;

(ii) materially breaches this Agreement and fails to remedy that breach within 30 days of written notice requiring remedy;

(iii) is convicted of a criminal offence involving moral turpitude or dishonesty;

(iv) breaches the confidentiality provisions of clause 12 or the restraint provisions of clause 13 while this Agreement is on foot; or

(v) becomes bankrupt or enters into any arrangement with creditors.

(b) Termination for Convenience — upon not less than six (6) months written notice to the Consultant, at any time and for any reason.

7.2 **Consequences of Termination for Cause:** If this Agreement is terminated for cause under clause 7.1(a):

(a) the Consultant is entitled to receive their Profit Share accrued up to the date of termination (pro-rated for any partial Financial Year based on management accounts);

(b) the Consultant is not entitled to any Passive Royalty, ongoing payments, or goodwill payment; and

(c) the Restraint Obligations under clause 13 apply for the full Restraint Period.

7.3 **Consequences of Termination for Convenience:** If this Agreement is terminated for convenience under clause 7.1(b):

(a) the Consultant is entitled to receive their Profit Share accrued up to the date of termination (pro-rated based on management accounts);

(b) the Consultant is entitled to receive a **Goodwill Settlement** equal to 50% of the independently assessed goodwill value of the HealthPlus International business at the date of termination. The goodwill assessment shall be carried out by a mutually agreed registered business valuer (or if no agreement is reached within 14 days, by a valuer appointed by the President of the Institute of Chartered Accountants Australia and New Zealand). The cost of valuation is borne equally by both parties;

(c) the Goodwill Settlement shall be paid within 90 days of the valuation being finalised; and

(d) the Restraint Obligations under clause 13 apply for the full Restraint Period.

PART 5A — FINANCIAL SAFEGUARDS AND TRANSPARENCY

5A. Director Salary Cap

5A.1 The parties acknowledge that the Director salary of Abhay J Kumar is included as a Gross Expense and therefore directly reduces the Net Profit available for distribution to both parties.

Director Salary Cap: NIL

No Director Salary may be drawn under this Agreement until both parties agree the Salary Cap in writing.

5A.2 The Director Salary Cap is **nil (AUD $0)** as at the Commencement Date. No Director Salary shall be drawn from the HealthPlus International business as a Gross Expense unless and until both parties have agreed the Salary Cap amount in a written variation to this clause signed by both parties.

5A.3 Any Director salary drawn in excess of the agreed Salary Cap (or, prior to written agreement, any Director salary at all) shall be disregarded for the purpose of calculating Net Profit under this Agreement. Such amounts shall be added back to Net Profit for the purpose of calculating the Consultant's Profit Share.

5A.4 The Salary Cap, once agreed, shall be reviewed annually by mutual written agreement. If no written agreement is reached at review, the Salary Cap remains at the previously agreed level adjusted by CPI (Sydney, All Groups) for that Financial Year.

5A.5 The Director may also be reimbursed for reasonable out-of-pocket expenses directly incurred in operating the HealthPlus International business, supported by receipts, provided such expenses are included in the Gross Expenses calculation in accordance with clause 5B.

5B. Definition of Reasonable Expenses

5B.1 Gross Expenses shall only include expenses that are:

(a) directly and reasonably incurred in the operation of the HealthPlus International business;

(b) at arm's length (i.e. not paid to a related party of the Director at above-market rates without the Consultant's written consent);

(c) supported by invoices, receipts or payroll records; and

(d) consistent with the nature and scale of the HealthPlus International business.

5B.2 The following expenses are **excluded** from Gross Expenses and shall not reduce Net Profit (this exclusion is also restated in the definition of Net Profit in clause 1):

(a) personal expenses of the Director or any related party that are not directly attributable to the business;

(b) capital expenditure (which shall be amortised in accordance with Australian accounting standards, not expensed in full);

(c) any payment to a related party of the Director in excess of the fair market rate for equivalent services;

(d) any expense incurred for a business activity other than the HealthPlus International healthcare workforce placement business; and

(e) any expense attributable to Pre-Existing WGS Interests.

5B.3 If the Consultant disputes the classification of any expense, the matter shall be referred to an independent registered accountant for determination, with costs borne equally. The accountant's determination is final and binding.

5C. Monthly Financial Reporting

5C.1 The Company shall provide the Consultant with a Monthly Management Report within 15 days of the end of each calendar month. The Monthly Management Report shall include:

(a) total Gross Revenue received for the month;

(b) itemised Gross Expenses for the month, grouped by category;

(c) Director salary drawn for the month (if any, subject to clause 5A);

(d) year-to-date totals for Revenue, Expenses and Director salary; and

(e) estimated Net Profit year-to-date and estimated Profit Share accrued.

5C.2 The Consultant may request copies of bank statements, invoices, payroll records or other financial documents in connection with a Monthly Management Report within 14 days of receiving the report. The Company must provide the requested documents within 7 Business Days.

5C.3 If the Company fails to provide three or more consecutive Monthly Management Reports, the Consultant may appoint an independent accountant to audit the Company's HealthPlus International accounts, with the cost borne by the Company.

5C.4 **Reporting Continuity During Royalty Term.** The Monthly Management Report obligations in clauses 5C.1 to 5C.3 shall continue throughout the Royalty Term following Retirement of the Consultant. For the avoidance of doubt, the Consultant (or their Next of Kin under clause 9) shall continue to receive Monthly Management Reports covering the HealthPlus International business for the duration of the fifteen (15) year Royalty Term, and shall retain the audit right in clause 5C.3 throughout that period.

5D. Minimum Guaranteed Draw — Removed

5D.1 The Original Agreement's Minimum Guaranteed Draw provisions have been removed by mutual agreement. The Consultant is paid pure Profit Share in accordance with Part 3 of this Agreement. Interim drawings may be agreed in writing under clause 5.7.

PART 5B — SHARED CONTROL, VOTING RIGHTS AND MAJOR DECISIONS

5E. Scope of Shared Control

5E.1 The parties acknowledge that while Abhay J Kumar retains full legal ownership and directorial authority over Westminster Green Solutions Pty Ltd, the parties have agreed to share operational control over a limited and defined set of decisions affecting the HealthPlus International business, as set out in this Part.

5E.2 The shared control provisions in this Part do not give the Consultant any rights under the *Corporations Act 2001 (Cth)*, any right to act as a director, or any ability to bind the Company to third parties. They create contractual rights between the parties only.

5E.3 Breach of the shared control provisions by the Director entitles the Consultant to seek injunctive relief and/or claim damages, and constitutes a material breach of this Agreement.

5F. Decisions Requiring Both Parties' Consent ("Reserved Matters")

5F.1 The following three decisions affecting the HealthPlus International business require the prior written consent of both parties before implementation:

(a) Sale or Transfer: any sale, transfer, assignment or encumbrance of the HealthPlus International business, its client book, worker database, brand or goodwill (see also Part 4);

(b) Director Salary above Cap: any increase to the Director salary beyond the Salary Cap in clause 5A (which for the avoidance of doubt is nil at the Commencement Date); and

(c) Related Party Transactions: any transaction between the Company and a related party of the Director (including family members, associated entities or trusts) in connection with the HealthPlus International business, where the value of the transaction or series of related transactions in a Financial Year exceeds AUD $5,000.

> ***DRAFTING NOTE:*** *The Reserved Matters list has been reduced from nine items in the Original Agreement to three items. The matters previously reserved (Strategic Direction, Major Contracts, Capital Expenditure, New Joint Ventures, Use of Debt, Brand or Trading Name Change) are now matters for the Director's management discretion under clause 5G.4, subject to ongoing reporting obligations and the Consultant's rights to information and audit under clause 5C.*

5F.2 If the Director proceeds with a Reserved Matter without the Consultant's written consent, the Consultant may:

(a) treat the act as a material breach of this Agreement;

(b) seek urgent injunctive relief from a court to restrain the act; and/or

(c) elect to treat the breach as a termination for convenience by the Company, entitling the Consultant to the remedies in clause 7.3.

5G. Decision-Making Process

5G.1 For any Reserved Matter, the Director must provide the Consultant with:

(a) written notice of the proposed decision, including all material details;

(b) a reasonable period (not less than 10 Business Days) to consider and respond; and

(c) any relevant documents, financial information or third-party advice relied upon by the Director.

5G.2 The Consultant must respond in writing within the period specified. Silence is not consent.

5G.3 If the parties cannot agree on a Reserved Matter within 20 Business Days of the Director's notice, the matter shall be referred to mediation under clause 15.2. The Director shall not implement the Reserved Matter until mediation is concluded.

5G.4 For all other operational decisions (including the matters previously listed as Reserved Matters in the Original Agreement but now removed under clause 5F.1), the Director may act unilaterally but shall keep the Consultant reasonably informed through the Monthly Management Reports and ad hoc communication.

5H. Annual Business Plan and Budget

5H.1 Within 60 days before the start of each Financial Year, the Director shall prepare and present to the Consultant a draft Annual Business Plan and Budget for the HealthPlus International business for the coming year, including projected Gross Revenue by service category, projected Gross Expenses by category, projected Net Profit and estimated Profit Share, proposed capital expenditure, and key strategic objectives for the year.

5H.2 The parties shall negotiate in good faith to agree the Annual Business Plan and Budget within 30 days of presentation.

5H.3 If no agreement is reached, the prior year's budget shall apply with CPI adjustment.

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PART 5I — ANTI-MIGRATION AND BUSINESS INTEGRITY

5I. Anti-Avoidance / Anti-Migration

5I.1 The anti-avoidance provisions of this Agreement shall apply to any arrangement where the **sole or primary purpose** is to materially reduce the Consultant's contractual entitlements under this Agreement by transferring HealthPlus International operational activities, client relationships, or healthcare workforce placement revenue to another entity controlled by or associated with the Director.

5I.2 For the avoidance of doubt, this clause does **not** restrict:

(a) genuine commercial restructuring of Westminster Green Solutions Pty Ltd's Pre-Existing WGS Interests in any sector other than healthcare workforce placement under the HealthPlus International trading name;

(b) ordinary business development activities of the Director that do not have the sole or primary purpose of reducing the Consultant's entitlements; or

(c) any transaction approved by both parties in writing.

5I.3 Where the Consultant alleges a breach of clause 5I.1, the Consultant must give written notice to the Director identifying the impugned arrangement and the basis for the allegation. The Director shall respond within 14 days with such information as is reasonably necessary to evaluate the allegation. If the dispute is not resolved within 30 days, either party may refer it to mediation under clause 15.2.

5I.4 If breach is established, the Consultant is entitled to: (a) an account of profits attributable to the diverted activities; (b) restitution of any Profit Share or Passive Royalty that would have been payable but for the breach; and (c) injunctive relief restraining further diversion.

5J. WGS Pre-Existing Interests — Carve-Out

5J.1 This Agreement applies **exclusively** to the HealthPlus International healthcare workforce placement trading activity of Westminster Green Solutions Pty Ltd.

5J.2 For the avoidance of doubt, nothing in this Agreement:

(a) entitles the Consultant to any share of profit, royalty, sale proceeds, or other entitlement arising from any Pre-Existing WGS Interests including but not limited to NDIS-related labour hire, waste and recycling operations, or any other commercial activity not conducted under the HealthPlus International trading name;

(b) gives the Consultant any rights or interest in Westminster Green Solutions Pty Ltd as a corporate entity, its share capital, or any of its other assets that are not specifically and exclusively used in the HealthPlus International business; or

(c) restricts the Director's freedom to operate, develop, acquire, divest, or restructure any Pre-Existing WGS Interests, subject only to the anti-migration provisions in clause 5I.

5J.3 Where the Company conducts shared services or pooled overhead arrangements covering both HealthPlus International and Pre-Existing WGS Interests, Gross Expenses attributable to HealthPlus International shall be apportioned on a reasonable and consistent basis. The methodology must be disclosed in the Monthly Management Report and is subject to clause 5B.3 dispute resolution.

PART 6 — VOLUNTARY EXIT BY THE CONSULTANT

8. Retirement of the Consultant

8.1 The Consultant may at any time elect to retire from active business development and operational duties by giving not less than six (6) months written notice to the Director (a **"Retirement Notice"**).

8.2 Retirement under this clause does not trigger a Dissolution Event. The Company shall continue to operate the HealthPlus International business following the Consultant's retirement.

8.3 Following retirement, the Consultant shall receive a **Passive Royalty** equal to 50% of Net Profit of the HealthPlus International business, calculated and paid annually in accordance with clauses 5.3 to 5.5, for the duration of the Royalty Term, subject to:

(a) the HealthPlus International business continuing to generate Net Profit; and

(b) the Consultant (or their Next of Kin under clause 9) remaining entitled under this Agreement.

ROYALTY TERM: FIFTEEN (15) YEARS

from the date of the Retirement Notice

at 50% of Net Profit — unchanged throughout the Royalty Term

8.4 **Royalty Term.** The Passive Royalty Term is **fifteen (15) years** commencing on the date of the Retirement Notice. Upon expiry of the Royalty Term, the Passive Royalty automatically ceases and all entitlements of the Consultant and any Next of Kin under this clause 8 are extinguished. This clause replaces the perpetual Passive Royalty provision in the Original Agreement.

8.5 **Successor Binding.** During the Royalty Term, the Passive Royalty shall survive any Sale Event under Part 4 and bind any arm's-length successor entity or purchaser of the HealthPlus International business as a going concern for the unexpired portion of the Royalty Term. The Company must procure a written deed of assumption from any purchaser in accordance with clause 6.6.

8.6 During the Royalty Term, the Consultant shall have no obligation to perform any duties for the Company but shall remain bound by the confidentiality obligations in clause 12. The Restraint Obligations in clause 13 do not apply to a retired Consultant who continues to receive Passive Royalties.

8.7 The Passive Royalty shall cease upon the earliest of:

(a) the expiry of the fifteen (15) year Royalty Term;

(b) a Dissolution Event under clause 13;

(c) the Consultant (or their estate) executing a written deed surrendering all entitlements under this Agreement; or

(d) the operation of the heir entitlement cap in clause 9.2.

9. Voluntary Exit Without Retirement

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9.1 If the Consultant wishes to fully exit this Agreement (i.e. surrender all entitlements including any Passive Royalty), the Consultant must give not less than six (6) months written notice to the Director.

9.2 A full exit under this clause triggers a Dissolution Event under clause 13 unless the Director agrees in writing to continue operating the HealthPlus International business independently. If the Director elects to continue:

(a) the Consultant is entitled to 50% of the independently assessed goodwill value of the business at the date of exit (calculated as per clause 7.3(b)); and

(b) the Consultant receives their accrued Profit Share to the date of exit.

9.3 Following a full exit, the Restraint Obligations in clause 13 apply for the full Restraint Period.

PART 7 — DEATH OF EITHER PARTY

10. Death of the Consultant

10.1 Upon the death of the Consultant, the Consultant's entitlement under this Agreement passes to their nominated Next of Kin.

10.2 **Heir Entitlement — Capped.** The Next of Kin shall receive the Passive Royalty (or the active Profit Share if the Consultant had not yet retired) for a period equal to the **longer** of:

(a) the unexpired portion of the Royalty Term (i.e. the residual period of the fifteen-year Royalty Term commenced by the Consultant's Retirement Notice); or

(b) ten (10) years from the date of the Consultant's death,

provided always that, where the Consultant has issued a Retirement Notice, the total period of Passive Royalty payments (combined to the Consultant during life and to the Next of Kin after death) shall not exceed fifteen (15) years from the date of the Retirement Notice.

> ***DRAFTING NOTE:*** *This clause incorporates a drafting fix to the Original Agreement. Under the Original Agreement, where the Consultant retired and later died, the 10-year heir payment under clause 9.2 ran in addition to the (then perpetual) Passive Royalty, creating uncertainty over total exposure. Under the amended 15-year Royalty Term structure, the heir entitlement is now expressly capped so that total Passive Royalty payments cannot exceed 15 years from the Retirement Notice. Where the Consultant dies before issuing a Retirement Notice, the 10-year heir entitlement under clause 10.2(b) applies in full and is not affected by the 15-year cap (because no Royalty Term has commenced). This change preserves the commercial intent of both parties while removing a known double-counting risk.*

10.3 After the expiry of the period determined under clause 10.2, all entitlements of the estate and Next of Kin under this Agreement cease. The Company shall have no further obligation to pay any royalty or share of profit to the estate or Next of Kin.

10.4 The Consultant shall nominate their Next of Kin in writing within 30 days of signing this Agreement. The nomination may be updated at any time by written notice to the Director. If no nomination is made, the entitlement passes in accordance with the intestacy laws of NSW.

10.5 The Next of Kin has no obligation to perform any duties and is not bound by the Restraint Obligations in clause 13.

10.6 The Restraint Obligations in clause 13 do not pass to the estate or Next of Kin.

11. Death of Abhay J Kumar (Director)

11.1 Westminster Green Solutions Pty Ltd is a separate legal entity. The death of Abhay J Kumar does not automatically terminate this Agreement.

11.2 Upon the death of Abhay J Kumar, the Company shall continue to be bound by this Agreement. The Company's obligations pass to Abhay J Kumar's estate and any successor director of the Company.

11.3 If the estate of Abhay J Kumar elects to wind up the Company or cease the HealthPlus International business within 12 months of the death, a Dissolution Event occurs under clause 13 and the Consultant is entitled to 50% of Net Assets at dissolution.

11.4 If the Company continues to operate, the Consultant continues to receive their Profit Share or Passive Royalty as applicable, subject to the Royalty Term and heir entitlement provisions in clauses 8 and 10.

PART 8 — CONFIDENTIALITY

12. Confidential Information

12.1 Each party acknowledges that in the course of this Agreement they will have access to confidential information of the other party and of the HealthPlus International business, including but not limited to: client lists, worker databases, pricing structures, financial information, international sourcing arrangements, placement methodology, business strategy, and any other information marked or understood to be confidential (**"Confidential Information"**).

12.2 Each party shall:

(a) keep all Confidential Information strictly confidential;

(b) not disclose any Confidential Information to any third party without the prior written consent of the other party;

(c) use Confidential Information only for the purposes of performing their obligations under this Agreement; and

(d) immediately notify the other party upon becoming aware of any actual or suspected breach of confidentiality.

12.3 The confidentiality obligations in this clause survive termination or expiry of this Agreement indefinitely.

12.4 Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the receiving party; (b) was already known to the receiving party prior to disclosure; or (c) is required to be disclosed by law or court order, provided prompt notice is given to the disclosing party.

PART 9 — RESTRAINT OF TRADE

13. Restraint Obligations

13.1 During the Restraint Period following a **full exit** under clause 9 or **termination for cause** under clause 7.1(a), the Consultant must not within the Restraint Territory:

(a) directly or indirectly carry on, own, manage, advise, consult to, or hold any interest in a Competing Business;

(b) solicit, induce, or entice any client or customer of HealthPlus International to cease doing business with HealthPlus International or to do business with a Competing Business;

(c) solicit, recruit, or entice any employee, contractor, or placed worker of HealthPlus International to terminate their engagement with HealthPlus International; or

(d) use any Confidential Information of HealthPlus International in connection with any Competing Business.

13.2 The parties acknowledge that the Restraint Obligations are reasonable in scope, duration and geography having regard to the legitimate business interests of HealthPlus International, and that a breach would cause significant harm that would not be adequately compensated in damages.

13.3 **Restraint does NOT apply** where:

(a) the Consultant has retired under clause 8 and is within the Royalty Term — in which case the Consultant may engage in any business activity that does not directly use HealthPlus International Confidential Information or directly solicit HealthPlus International clients;

(b) the Agreement was terminated by the Company for convenience under clause 7.1(b); or

(c) the parties agree in writing to waive the restraint.

13.4 **Abhay J Kumar is equally bound:** If Abhay J Kumar causes the Company to terminate this Agreement for convenience, or if the Company dissolves the HealthPlus International business within the Restraint Period following exit, Abhay J Kumar personally shall not carry on a substantially similar healthcare workforce placement business in direct competition with any business the Consultant establishes during the Restraint Period.

13.5 The restraint obligations in this clause are intended to be read as a series of separate restraints of reducing scope. If any restraint is unenforceable in its full scope, it shall be read down to the minimum extent necessary to make it enforceable.

PART 10 — DISSOLUTION OF HEALTHPLUS INTERNATIONAL

14. Dissolution Events

14.1 A Dissolution Event occurs if:

(a) the Consultant gives written notice of full exit under clause 9 AND the Director does not elect to continue the business independently;

(b) both parties agree in writing to dissolve the HealthPlus International business;

(c) the Company becomes insolvent or enters liquidation; or

(d) a court orders the winding up of the Company.

14.2 A Dissolution Event is **NOT** triggered by:

(a) the Retirement of the Consultant under clause 8 (Passive Royalty model);

(b) the expiry of the 15-year Royalty Term, which causes only the Passive Royalty to cease;

(c) the death of either party (which is governed by clauses 10 and 11); or

(d) termination by the Company for cause or convenience (which is governed by clause 7).

14.3 Upon a Dissolution Event, the parties shall:

(a) cease accepting new business under the HealthPlus International trading name within 30 days;

(b) honour all existing client placements and worker obligations until their natural conclusion;

(c) collect all outstanding receivables and settle all outstanding payables; and

(d) distribute the Net Assets of the HealthPlus International business 50% to Abhay J Kumar and 50% to the Consultant (or their estate), within 60 days of finalising accounts.

14.4 **Net Assets on dissolution** means: total realisable assets of the HealthPlus International business minus all liabilities (including tax) as at the date of dissolution. For the avoidance of doubt and consistent with clause 5J, Net Assets exclude any Pre-Existing WGS Interests.

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PART 11 — SCENARIO MATRIX (PLAIN ENGLISH SUMMARY)

The following scenarios summarise how this Agreement operates in practice. In all cases, the formal clauses above govern. This matrix is for reference only.

SCENARIO 1 — Normal Operations

Both parties active. Reji builds business and manages international operations. Monthly Management Reports provided within 15 days of month end. Director Salary capped at **nil** until both parties agree the Salary Cap in writing. Profit split 50/50 annually within 60 days of 30 June. No Minimum Guaranteed Draw — pure Profit Share. Interim drawings only by mutual written agreement.

SCENARIO 2 — Reji Retires

Reji gives 6 months Retirement Notice. HealthPlus continues under Abhay. Reji receives 50% of Net Profit as Passive Royalty for **fifteen (15) years from the Retirement Notice**. Monthly Management Reports continue throughout the Royalty Term. No duties required. Restraint of trade does NOT apply during the Royalty Term. At end of year 15, all Passive Royalty entitlements cease automatically.

SCENARIO 3 — Reji Fully Exits

Reji gives 6 months notice and surrenders all entitlements. If Abhay continues the business, Reji receives 50% of independently valued goodwill + accrued Profit Share. If Abhay does not continue, HealthPlus dissolves and Net Assets split 50/50. 3-year restraint of trade applies in NSW.

SCENARIO 4 — Abhay Terminates for Cause (fraud / breach)

Agreement ends immediately. Reji receives accrued Profit Share to date only. No goodwill payment. No ongoing royalties. 3-year restraint applies.

SCENARIO 5 — Abhay Terminates for Convenience

Abhay gives 6 months notice. Reji receives accrued Profit Share + 50% of independently valued goodwill. No ongoing royalties after payment. 3-year restraint applies to Reji. Abhay is also restrained from operating a substantially similar healthcare workforce placement business in direct competition with any business Reji establishes during the restraint period.

SCENARIO 6 — Reji Dies (before retirement)

Next of Kin receives 50% of Net Profit for ten (10) years from date of death. After 10 years, all entitlements cease. Business continues under Abhay. No duties or restraints apply to Next of Kin.

SCENARIO 7 — Reji Dies (during Royalty Term)

Next of Kin receives the longer of: (a) the unexpired portion of the 15-year Royalty Term, or (b) 10 years from death — capped so that **total Passive Royalty payments do not exceed 15 years from the original Retirement Notice**. After expiry, all entitlements cease.

SCENARIO 8 — Abhay Dies

Company continues as a separate legal entity. Obligations pass to estate and successor director. If estate winds up the business within 12 months, dissolution occurs — assets split 50/50. If business continues, Reji continues to receive Profit Share or Passive Royalty subject to Royalty Term.

SCENARIO 9 — Business is Sold During Operation

Reji receives 50% of Net Sale Proceeds, paid as each tranche of consideration is received. Abhay must give 60 days notice and full sale details before completing any sale. Reji has no veto but is entitled to their 50% of Net Sale Proceeds regardless.

SCENARIO 10 — Business is Sold During Royalty Term

Passive Royalty survives the Sale Event and binds the arm's-length successor for the unexpired portion of the Royalty Term. Company must procure a written deed of assumption from the purchaser. Royalty Term runs to its original 15-year expiry date.

SCENARIO 11 — Director Attempts to Migrate Business

If Abhay attempts to transfer HPI client relationships, workforce or revenue to another entity with the sole or primary purpose of reducing Reji's entitlements, anti-migration clause 5I triggers. Reji entitled to account of profits, restitution and injunctive relief. Genuine restructuring of WGS Pre-Existing Interests (non-HPI businesses) is unaffected.

SCENARIO 12 — Dispute Arises

Parties must first attempt good-faith negotiation within 14 days. If unresolved, mediation administered by the Australian Disputes Centre. If mediation fails within 30 days, either party may commence proceedings in the courts of New South Wales. Governing law: NSW.

PART 12 — GENERAL PROVISIONS

15. Dispute Resolution

15.1 If a dispute arises between the parties in connection with this Agreement, the parties must first attempt to resolve the dispute by good faith negotiation within 14 days of one party notifying the other of the dispute in writing.

15.2 If the dispute is not resolved by negotiation within 14 days, the parties must submit the dispute to mediation administered by the Australian Disputes Centre or a mediator agreed by the parties. The cost of mediation shall be shared equally.

15.3 If mediation is unsuccessful within 30 days of the mediator being appointed, either party may commence legal proceedings in the courts of New South Wales.

15.4 Notwithstanding this clause, either party may seek urgent injunctive or other equitable relief from a court without first complying with this clause.

16. Amendments

16.1 This Agreement may only be amended by a written document signed by both parties.

16.2 No waiver of any provision of this Agreement is effective unless in writing. A waiver on one occasion does not constitute a waiver on any future occasion.

17. Entire Agreement

17.1 This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties and agreements, including the Original Agreement HPI-PSA-2026-001 v1.0 dated 6 May 2026.

17.2 Each party acknowledges they have not relied on any representation, warranty or statement not expressly set out in this Agreement.

17.3 The Company Letter dated 11 May 2026 is incorporated by reference for the purpose of construing the parties' commercial intent only, in accordance with clause 2.2.

18. Severability

18.1 If any provision of this Agreement is held to be invalid or unenforceable, that provision shall be read down to the minimum extent necessary to make it valid and enforceable. If it cannot be read down, it shall be severed from the Agreement. The remaining provisions shall continue in full force and effect.

19. Governing Law and Jurisdiction

19.1 This Agreement is governed by and construed in accordance with the laws of New South Wales, Australia.

19.2 The parties irrevocably submit to the exclusive jurisdiction of the courts of New South Wales and the Federal Court of Australia.

20. Notices

20.1 Any notice under this Agreement must be in writing and delivered by email (with delivery confirmation) or registered post to the addresses set out in the Parties section of this Agreement.

20.2 A notice sent by email is deemed received at the time of successful transmission. A notice sent by registered post is deemed received two Business Days after posting.

21. Amendment History

Version	Date	Description
1.0 — Initial Execution	6 May 2026	Original Agreement executed by both parties.
2.0 — Amended and Restated	**28 May 2026**	Amendments per Company Letter dated 11 May 2026 incorporated: title amendment; 15-year Royalty Term replacing perpetual; Reserved Matters reduced to 3 items; new Anti-Migration (5I) and WGS Carve-Out (5J) clauses; Sale Event successor binding; Monthly Reporting continuity; heir entitlement cap; Minimum Draw removed; Salary Cap set at nil pending written agreement.

EXECUTION

EXECUTION NOTE

Both parties must sign this Amended and Restated Agreement in the presence of a witness. The witness must be an adult who is not a party to this Agreement. Each party should retain a signed original. This Agreement takes effect on the date it is fully executed by both parties and supersedes the Original Agreement HPI-PSA-2026-001 v1.0 dated 6 May 2026 from that date.

EXECUTED BY THE COMPANY

Westminster Green Solutions Pty Ltd (ABN 13 155 901 723) t/a Health Plus International

Signature: ________________________________ **Date:** ____________________

Full Name: Abhay J Kumar **Role:** Sole Director

Address: Unit 4, 44-46 Keeler Street, Carlingford NSW 2118

Witness Signature: ________________________________ **Date:** ____________________

Witness Name: ____________________ **Witness Address:** ____________________

EXECUTED BY THE CONSULTANT

Reji Varghese — Strategic Business Development Advisor / Business Development Consultant

Signature: ________________________________ **Date:** ____________________

Full Name: Reji Varghese **ABN/TFN:** [Insert]

Address: 26 Mubo Crescent, Holsworthy NSW 2173

Email: [Insert] **Phone:** [Insert]

Witness Signature: ________________________________ **Date:** ____________________

Witness Name: ____________________ **Witness Address:** ____________________